

initiated. *Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310 (*Hohenshelt*) holds that a drafting party does not necessarily forfeit its right to arbitration when it does not timely pay initiation or continuation fees. Sections 1281.97 and 1281.98 are not to be rigidly construed but rather only apply to invalidate the right to arbitration where the failure to pay fees is willful, grossly negligent, or fraudulent. (*Id.* at p. 323.) Nonpayment due to good faith mistake, inadvertence, or excusable neglect is not the sort of strategic nonpayment the statutes are meant to combat. (*Ibid.*)

Hohenshelt excuses Respondents here. Arbitrator AAA sent Respondents' counsel an invoice for arbitration initiation fees on March 3, 2026 stating a payment due date of April 2, 2026. (Declaration of Tara Cruz in Support of Motion Lift Stay at ¶ 8, Exhibit C.) Respondents' counsel did not notice the invoice because it went to their junk mail folder. (Declaration of Hannah Makinde in Support of Opposition to Motion to Lift Stay at ¶ 4.) Respondent discovered the arbitration file was closed when it received AAA's notice of case closure, which for some reason did not go to the junk mail folder. (*Ibid.*) Respondent immediately offered to pay the fee, though AAA refused to accept it because Plaintiff did not consent to reopening the arbitration. (*Id.* at ¶¶ 5-7, Exhibit C.)

Respondents' error was excusable neglect. Further, section 1281.97, subdivision (a)(1) states that a drafting party is only in material breach of an arbitration agreement where it fails to pay initiation fees within thirty days of the fee due date. AAA gave Respondents a due date of April 2, 2026. Respondents' offer to pay the fees on April 13, 2026 would, if accepted, have resulted in payment of the fees within thirty days of the due date. There was no material breach in the meaning of section 1281.97 here.

Conclusion. Plaintiff's motion to lift the stay is denied. Plaintiff is to contact AAA to reinitiate arbitration.

MARTINEZ, ET AL. v. COUNTY OF SOLANO, ET AL.
Case No. CU25-05652

Demurrer to FAC

TENTATIVE RULING

Defendant County of Solano's demurrer to Plaintiffs' first amended complaint is overruled in part and sustained without leave to amend in part.

The demurrer to Plaintiffs' first cause of action for negligence per se, second cause of action for "negligent failure to warn", and fourth cause of action for loss of consortium is overruled.

There is no common law tort liability for public entities. (*Torres v. Dep't of Corr. & Rehab.* (2013) 217 Cal.App.4th 844, 850.) Unless otherwise provided by statute, "[a] public entity is not liable for any injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code § 815(a).) Therefore, all government tort liability must be based on statute. (*Hoff v.*

Vacaville Unified Sch. Dist. (1998) 19 Cal.4th 925, 932; *Auth. for Cal. Cities Excess Liab. v. City of Los Altos* (2006) 136 Cal.App.4th 1207, 1212; *Luefer v. State of Cal.* (2002) 94 Cal.App.4th 1285, 1300.) Tort liability must be based on a specific statute either making a public entity liable for its conduct or creating some specific duty of care, and may not be based on the general tort provisions of Civil Code section 1714. (*Eastburn v. Reg'l Fire Prot. Auth.* (2003) 31 Cal.4th 1175, 1183.)

Both the first two causes of action are based on the statutory duties imposed by Food and Agricultural Code section 30503.5(b). This statute requires an animal shelter to, prior to “selling, giving away, or otherwise releasing” a dog known to the shelter to have bitten a person and broken that person’s skin, both disclose in writing the dog’s known bite history “to the person to whom the dog is sold, given away, or transferred” and to obtain a signed acknowledgment from “the person to whom the dog is sold, given away, or transferred” that the person was provided the written disclosure. The “documentation and disclosure requirements are for the purpose of public safety and the appropriate placement of dogs.” (Food & Agric. Code § 30503.5(c).)

Considering the stated purpose of the statute and the plain meaning of the language employed, the court concludes that the statute was intended by the legislature to mean that the shelter has a duty to provide a written disclosure to the person to whom the shelter has “released” or “transferred” a qualifying dog known to have bitten a person and broken skin. The interests of public safety and the appropriate placement of dogs are not served by requiring a shelter to disclose to the new legal owner of a potentially dangerous dog rather than the person to whom possession is given when the two are not the same person.

Plaintiffs have adequately alleged that Defendant had knowledge that the dog bit an employee of Defendant and inflicted “severe” injuries prior to releasing the dog to Plaintiffs. (FAC, ¶ 16.) Plaintiffs alleged that Defendant did not provide them written disclosure of this bite history and did not obtain Plaintiffs’ signed acknowledgment that they received the disclosure prior to releasing the dog to them. (*Id.* at ¶ 27.) Because these causes of action survive, Plaintiffs’ loss of consortium claim also survives.

Defendant’s claimed immunities pursuant to Government Code section 820.2 and 820.8 do not apply. While the decision to release the dog to Plaintiffs may have been discretionary, the failures to provide written disclosure and to obtain a signed acknowledgment of receipt of the disclosure were not. And, the allegations of the first amended complaint do not attempt to impose any liability on Defendant for the acts of third parties. Lastly, the duty of Defendant to release a dog to an animal rescue upon request does not conflict with the duty to provide disclosure and obtain acknowledgment when releasing the dog if Defendant knows the dog has bitten a person and broken skin prior to release.

Defendant’s demurrer to the third cause of action for “negligent failure to evaluate” and the fifth cause of action for “strict liability” is sustained without leave to amend.

Plaintiffs have not pleaded any statutory basis for imposing any duty or liability on Defendant County of Solano, a public entity, for its failure to “evaluate” the dog for dangerousness or transferability. The only statute identified in the first amended complaint is Food and Agricultural Code section 31603, which merely defines the term “vicious dog” without imposing any duty on shelters to evaluate dogs for being vicious.

As for the fifth cause of action for “strict liability”, Civil Code section 3342 imposes liability on the **owner** of a dog for the damages suffered by any person bitten by that dog while in a public place or lawfully in a private place regardless of the owner’s knowledge of the viciousness of the dog. While the liability may be imposed on a “keeper” of a dog if the keeper has prior knowledge of the vicious propensities of the dog, a “keeper” is someone who “harbors” or undertakes to control the actions of a dog. (*Buffington v. Nicholson* (1947) 78 Cal.App.2d 37, 41-42.) Plaintiffs alleged both that Defendant was not the owner of the dog (FAC, ¶ 12) and that Defendant relinquished possession and control of the dog to Plaintiffs (*id.* at ¶¶ 15, 18). Once possession was turned over to Plaintiffs, Plaintiffs became the keepers of the dog. Plaintiffs alleged that the attack occurred 15 minutes after they returned home, after Defendant ceased harboring or undertaking to control the actions of the dog.

Plaintiffs have made no attempt to meet their burden of showing “in what manner [they] can amend [these causes of action] and how that amendment will change the legal effect of [the] pleading.” (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990) 219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens’ Inst. Int’l* (1989) 212 Cal.App.3d 1393, 1408.)

COLEMAN v. SELECT PORTFOLIO SERVICING, INC., ET AL.
Case No. CU26-00897

Motion for Leave to File First Amended Complaint

TENTATIVE RULING

Plaintiff’s motion for leave to file first amended complaint is DENIED.

The motion suffers from a myriad of procedural defects.

The motion does not include a copy of the proposed amended pleading. (Cal. Rules of Court, rule 3.1324(a)(1).) It does not state what allegations are proposed to be deleted from the prior pleading by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a)(2).) It does not state what allegations are proposed to be added to the prior pleading by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a)(3).) The accompanying declaration does not state the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, or why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)